

**Answers to
Practice Problems
September 2011**

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Question 1

ndg architects

Inter Office Memo (e-mail)

To: James Noble (*james@ndg.co.uk*)

Cc:

Bcc:

From: xxxxxxxxxxxxxxxxxxxxxx

Date: 7th September 2011

RE: SHADY NOOK DEVELOPMENTS – FEASIBILITY STUDY

James,

It seems this project is becoming more interesting by the day. Although I must say that the addition of the so-called 'transport interchange' does significantly change the scope of the project, it was my understanding that the project was for the Theme Park/Leisure Complex only. That itself I'm sure would have raised a number of it's own unique issues! However, the scheme is developing and I'm sure we will be able to manage it. Please see below for my thoughts at this stage:

Site Appraisal: It appears that we have two main sites in addition to the third site, the railway line. All three will have their own specific issues in addition to having to deal with all the main-stream issues that arise on the majority of projects. I have tried to outline some of the specific issues for each site below:

Quarry: Although at first it seems simple to consider the quarry as prime for development, given its location in the heart of the now Lancashire National Park we will have to consider a number of factors.

- What is the condition of the quarry at present? What machinery, buildings, waste etc has been left behind from its former working life?
- How would we remove any machinery? Are the buildings suitable for re-use or do they need to be removed? What waste is on the site, what was the quarry used for? How much is it going to cost to remove any of the waste, if any? Are we even able to remove the waste, whatever it may be?
- If the buildings have been there for some time, they could possibly be in a poor condition, or even full of asbestos and other hazardous materials from their former working life.
- Is the land contaminated in any way from the former use? What is the ground condition? What is the current environment of the site?

There are a lot of questions here to be asked therefore I suggest that a site survey is conducted as soon as possible. In addition an environmental survey needs to be carried out. This will identify any hazardous materials still on the site and throw up any issues we need to deal with as soon as possible. Furthermore this will identify any wildlife that exists on the site eg newts or bats. In addition I feel that any members of the NDG team should be familiarised with the site prior to any work being carried out for the Study.

Furthermore the sites location could become even more of an issue. The Lancashire National Park I assume has been listed as an SSSI (Sites of Specific Scientific Interest) or even an area of AONB, furthermore I'm sure the government would consider this a Green Belt area, therefore making the existence of wildlife in the area a high probability. We should also have a flood risk assessment carried out, particularly on this site, although, this should be considered for all three.

The site has obviously not been used for many years and as such would need all new electrical, mechanical and waste services. This is a major consideration as the site is very isolated and running new services to the site may be extremely difficult, time consuming and costly. The client may wish to consider this be the first self sufficient theme park?!

Inner City Site: This would be an altogether different site. As I don't know much about it other than its inner city location I have tried to highlight as many considerations as possible, although some of them may not be relevant.

- Similarly to the quarry, what is the condition of the site, and are there any existing buildings on the site? These issues would require the same level of consideration as the quarry and a full site and environmental surveys would need to be carried out.

- What is its location, how do we access the site? As it is inner city, it may become logistically difficult to operate the site during construction, or even accessing it for any necessary surveys.

- We would need to consider the ground condition further in this instance as there may be services crossing the site for adjacent buildings, also are there any train lines that pass near, over or even beneath it (unlikely outside London, but we should consider it none the less).

- Its inner city location may require an Archaeological survey, you never know we could uncover part of the old Roman Manchester directly beneath the site!

Therefore we need to carry out a full site survey and environmental survey also. In addition the archaeological survey may need to be considered. In addition we should consider the condition of the adjacent buildings.

As a further note, as this is to be the location of the transport interchange, we need to consider the wider impact of this to the surrounding area. The level of activity of cars, buses etc is sure to increase and thus we need to consider the impact this will have on the existing transport infrastructure as well as any local amenities that would either be stretched by this increased capacity or any that would be required in addition.

Railway Line: This is altogether more difficult, the site is hard to determine as it runs between the other two, therefore all the issues outlined above for both sites, should be considered for this site also. In addition we should consider the logistics of operating this area as a site. A larger area will be more difficult to supervise and operate, as such we may need to consider phasing this section of the work. Furthermore this section is crucial as two completed sites at either end with any incomplete link would I'm sure have a huge financial implication for the client.

Also, the site is the former railway which, I'm sure, has some historic value to the town and losing it may anger some people. Obviously, this is vital to the proposal and needs to gain approval not just in statutory terms but in the public eye also. We need to consider what impact the development may have in this instance, the client does not want any bad press I'm sure before the works begin. Therefore we need to find out if there are any organisations or charities that support or look after the railway and inform them of the work, the client may wish to consider how he is going to combat any issues that may arise in this case.

Furthermore we would need to consider how services are to be run to the site, or if any currently exist. This as stated above regarding the quarry could be extremely costly to the client.

Planning Approvals: All three sites offer a different challenge as I'm sure my notes above will suggest. They will I'm sure offer a different challenge during Planning. The client may wish to consider a Pre-Application for each site for Outline Planning Permission. This may give him the opportunity to present his case to the statutory bodies and local population before proceeding to far and incurring unnecessary costs.

Above I mentioned that we need to consider the location of the quarry as it may be considered part of an SSSI, AONB or certainly part of the Lamcashire National Park. This will of course make Planning Approval difficult to achieve. In addition we need to consider if any of the buildings, if they exist on either site are listed as this will incur a further difficulty when seeking approval.

As a first port of call we should look at the Local Development framework. I'm not sure if each site is listed under the same one, or three separate ones, but we should consider them none the less. In addition we should look at the National Planning Policies and Guidance. I have outlined the ones I feel relate specifically below:

- Draft Planning Policy Statement: Planning for a Natural and Healthy Environment
- Planning Policy Statement 1: Delivering Sustainable Development
- Planning Policy Statement: Planning and Climate Change - Supplement to PPS1
- Planning Policy Guidance 2: Green Belts
- Planning Policy Statement 4: Planning for Sustainable Economic Growth
- Planning Policy Statement 5: Planning for the Historic Environment
- Planning Policy Statement 7: Sustainable Development in Rural Areas
- Planning Policy Guidance 8: Telecommunications
- Planning Policy Statement 9: Biodiversity and Geological Conservation
- Planning Policy Statement 10: Planning for Sustainable Waste Management
- Planning Policy Statement 12: Local Spatial Planning
- Planning Policy Guidance 13: Transport
- Planning Policy Guidance 14: Development on Unstable Land
- Planning Policy Guidance 17: Planning for Open Space, Sport and Recreation
- Planning Policy Guidance 19: Outdoor Advertisement Control
- Planning Policy Statement 23: Planning and Pollution Control
- Planning Policy Guidance 24: Planning and Noise
- Planning Policy Statement 25: Development and Flood Risk

In addition to these we should consider the fact that a Section 106 agreement may be required to gain approval for the development.

Easements / Rights: We should consider whether any easements or Rights of Light etc have been gained or incurred particularly in the case of the inner city site.

Sustainability: We should also consider the Sustainable nature of the development and whether the client wishes to push this area of the development. This could be useful in gaining approval for the development. We may wish to contact BREEAM or consult their publications on this.

Conservation Areas / TPO: We should also consider whether any of the sites, specifically the inner city site is part of a conservation area. This would mean that any trees are protected as all trees within a conservation area are. In addition we should assume the same for the quarry and check if there are any TPOs (Tree Protection Orders) on any trees on all three sites.

Environmental Impact Assessment: We should have an environmental impact assessment carried out immediately in addition to the relevant site surveys mentioned above. In addition to this a transport assessment should be considered for all three sites, any recommendations for this will be available from the Local Authority and the Highways Agency.

Consultancy Team: Considering the above information we should consider the following:

- Environmental Assessor: This would be crucial in determining the condition of all three sites
- Surveyor: This would be required to survey any existing buildings and the topographical nature of the sites.
- Services Engineer: We would require a services engineer to advise on the nature of the existing and proposed services to the site. As mentioned this may be extremely difficult with the quarry and the railway.
- Structural Engineer: We would require information of the structural stability of any existing structures on site and any adjacent structures. Furthermore they would be required to aid the environmental assessment by conducting trial pits to assess the existing ground conditions.
- Transport Engineer: We would require advice on the logistics of planning the new transport, not just for the site but the surrounding areas also and the impact this may have.
- Party Wall Surveyor: Although I have not mentioned this above, it may be the case that we have party wall issues on the inner city site, or even the other two.

I hope the above information is of help. I'm looking forward to getting on with this project, I know there is a lot to consider but it seems like quite an interesting challenge.

Kind regards,

XXXXXXXXXXXXXXXXXXXX

Architectural Assistant

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References:

Study Group K Notes - Site Appraisals and Planning

Question 2

ndg architects

Inter Office Memo (e-mail)

To: James Noble (*james@ndg.co.uk*)

Cc:

Bcc:

From: XXXXXXXXXXXXXXXXXXXX

Date: 7th September 2011

RE: MADCHESTER ACADEMY – FEE PROPOSALS

James,

Please see attached draft fee proposal letter, a charge out rate analysis and staff resourcing analysis for both schemes.

I have proposed that the two buildings be dealt with as separate projects due to their individual complexities. This is particularly true in the case of the listed warehouse, as we do not want delays on one to affect the other. Furthermore I have proposed that due to the proximity of them both we utilize the same or similar NDG team for both projects therefore enabling us to better ensure any continuity across the projects that the client may so desire.

Therefore I have assumed that a team of four people be used for each project at present. I have suggested that in addition Michael Hart come on board as a consultant for the Warehouse project given his experience in dealing with Listed Buildings. I have assumed that you will head up the team in both instances with the work delegated to a single Architect. Furthermore I have included myself (or equivalent) as well as a year out student as part of the team.

As you can see I have proposed a higher percentage fee for the conversion of the Grade II listed warehouse as a project of this type can have unforeseen issues at any stage and as such the scope of the project is always likely to be affected. Furthermore the planning process can be significantly more onerous and as such potentially more time consuming than a more conventional new build project. Therefore a higher fee at this stage will protect us to some degree.

I feel there is a decent profit to be made in the two schemes. At present the resourcing has allowed for more time on either project during some of the phases than may be required. Michael Hart's involvement may be limited depending on the complexities that arise at the Planning and construction Phase. Furthermore as the client is likely to want a similar specification for each project there may be scope to reduce the time allocated for each project and as such increase our profit margin for the project.

A thought, but at this stage it may be prudent in suggesting that the amount of units is amended within the proposal. I'm certain that Mr. Bibby and Ocean Trading will want to achieve the highest possible profit on the scheme and feel this may be better served by proposing a split, with some of the units becoming two or even three bedroom units. I do not think this will affect our fee proposal at present but feel this should be considered and agreed in the scope of works in the Form of Appointment prior to moving the project forward.

If you do have any questions, or want to go through the figures with me in more detail then please let me know.

Kind regards,

XXXXXXXXXXXXXXXXXXXX

Architectural Assistant

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References:

Study Group K Notes and templates

NDG Studios
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Ocean Trading
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MA02 8OT

7th September 2011

Dear Mr Bibby,

**RE: FEE PROPOSAL
FORMER WAREHOUSE AND ADJACENT LAND**

Thank you for inviting us to act as your Architect for the alterations to the existing Warehouse and adjacent land.

We propose that the Agreement between us will comprise a formal Letter of Appointment (to follow) together with the RIBA Conditions for the Appointment of an Architect (S-10-A).

Following your meeting with James Noble of NDG Architects I am pleased to propose our fees for the potential redevelopment of the Warehouse and adjacent land. We have proposed that the scheme be split into two separate projects so that one may not hinder the other.

At present you have said that the following is proposed:

- The existing Grade II listed warehouse to be converted into 48 one bedroom units.
- The adjacent land to be developed with a new 7-storey building with 28 one bedroom units.

As you are aware the appointed Quantity Surveyor has proposed a building cost for both projects. These are as follows:

- Warehouse redevelopment to 48 units - £1,545,000
- New development of 28 units - £1,232,000

Our fees for a full Architectural Services from Stages C to L will be as follows:

- Warehouse development : £100,100.00
(this has been calculated at a 6.5% fee of the estimated Contract Value as prepared by the QS.)
(the construction phase has been proposed as 65 Weeks)
- New Development : £67,760.00
(this has been calculated at a 5.5% fee of the estimated Contract Value as prepared by the QS.)
(the construction phase has been proposed as 52 Weeks)

ndg architects ltd

directors - James Noble - Belinda Carter - **associate directors** - Michael Hart - Sue Allen
telephone: 01981 886644 - **fax:** 01981 886655 - **web:** www.ndgarchitects.co.uk

Please note that additional fees will be required for submission to statutory authorities, namely for Planning and listed Building Consent and building control approval.

In addition please note that all fees are charged at the standard rate of VAT (20%)

We will submit and account for the fees for each stage as 50% upon commencement of the works and 50% upon completion of each work stage. Please note that any additional works will beyond the scope of works will require an additional time charge fee. Our Fees have been adjusted to allow for 30% payment at Stages C-D, 40% payment at stages E-G and a further 30% for stages H-L.

We would also note that our fees include for one weekly site visit by the Project Architect and assistant.

Please note that this fee proposal does not legally form the terms of our appointment to the project but is for your consideration only. Further to this letter we will have to define the scope of the project.

Furthermore you should consider the additional fees required for the following, (as a guide I have proposed an estimated percentage of their potential fees, please note however these are subject to be change should the scope of works change.

- Structural Engineer (charged at approx 2.5% of construction costs)
- Services Engineer (charged at approx 2.0% of construction costs)
- Quantity Surveyor (charged at approx 1.5% of construction costs)
- Fire Consultant (charged at approx 1.5% of construction costs, could be higher depending on design proposals)
- Party Wall Surveyor (if required)(charged at approx 1.5% of construction costs)
- Other consultants/specialists (charged at an individual basis)
- CDM Coordinator – (depending on the scope/level of work)

In addition you should contact your insurers to confirm you have the correct level and type of insurance for this project. We will confirm the details of our Personal Indemnity Insurance in due course. In addition we enclose for your information, a copy of 'A Clients Guide to Health and Safety for a Construction Project' which briefly explains your duties under the Construction Design and Management Regulations 2007.

We can confirm that you will be represented by James Noble on behalf of NDG Architects for both schemes. We trust that the above is to your interest and looking forward to hearing from you soon.

Yours sincerely

James Noble

Director

for and on behalf of **ndg architects**

ndg architects ltd

directors - James Noble - Belinda Carter - **associate directors** - Michael Hart - Sue Allen
telephone: 01981 886644 - **fax:** 01981 886655 - **web:** www.ndgarchitects.co.uk

Hourly / Day Rate Calculation

Assumptions

Hours per Year (1) 1700

Hours per Day 7.5

Staff	Basic Salary (£)	Overheads (£) 100% (2)	Hourly Rate	Day Rate
James Noble Director	£65,000	£65,000	£76	£574
Belinda Carter Director	£65,000	£65,000	£76	£574
Michael Hart Associate Director	£45,000	£45,000	£53	£397
Sue Allen Associate Director	£45,000	£45,000	£53	£397
Dareem Patel Architect	£36,000	£36,000	£42	£318
Sven Berg Architect	£36,000	£36,000	£42	£318
Tomas Hjeltnes Architect	£34,000	£34,000	£40	£300
Renata Wang Architect	£34,000	£34,000	£40	£300
George Gee Architectural Technologist	£29,000	£29,000	£34	£256
XXXXXXXXXXXXXX Architectural Assistant	£25,000	£25,000	£29	£221
Olga Poulicek Architectural Assistant	£25,000	£25,000	£29	£221
Mark Jones Architectural Technician	£23,000	£23,000	£27	£203
Jo Cheung Year Out Student	£15,000	£15,000	£18	£132
Mary Watts Year Out Student	£15,000	£15,000	£18	£132
Sarah Jane Key Secretary				
Sophie Bright Clerical Assistant				
Jane Dudley Clerical Assistant				
Anne Holding Accounts				
Total	£492,000	£492,000		

Notes:

(1) Number of fee earning hours based on a 5-day week, 7.5-hour working day, 20 days paid holiday, 5 days sick leave on average, and 8 days public holiday (1,700 hours per year approx)

(2) Overheads and Profit as stated on a 50:50 basis within Question 2 September 2011

*Template and notes created with Study Group K

PROJECT:
Conversion of the Existing Grade II Listed Warehouse
Project cost to Office

RIBA Job Stage	Duration (Weeks)	Staff Member	Days / Week	Total Days	Hourly Rate	Day Rate	Cost	Total Stage Cost
D Detailed Proposals (Note 1)	4	James Noble	1	4	£76	£574	£2,296	£8,986
		Michael Hart	0.5	2	£53	£397	£794	
		Dareem Patel	2	8	£42	£318	£2,544	
		xxxxxxxxxxxxxx	2	8	£29	£221	£1,768	
		Jo Cheung	3	12	£18	£132	£1,584	
E Final Proposals	4	James Noble	1	4	£76	£574	£2,296	£6,920
		Dareem Patel	1	4	£42	£318	£1,272	
		xxxxxxxxxxxxxx	2	8	£29	£221	£1,768	
		Jo Cheung	3	12	£18	£132	£1,584	
F Product Information	6	James Noble	1	6	£76	£574	£3,444	£9,717
		Dareem Patel	1	6	£42	£318	£1,908	
		xxxxxxxxxxxxxx	1.5	9	£29	£221	£1,989	
		Jo Cheung	3	18	£18	£132	£2,376	
G Tender Documentation	2	James Noble	1	2	£76	£574	£1,148	£4,096
		Dareem Patel	2	4	£42	£318	£1,272	
		xxxxxxxxxxxxxx	2	4	£29	£221	£1,884	
		Jo Cheung	3	6	£18	£132	£792	
H Tender Action (NOTE 2)	4	James Noble	0.5	2	£76	£574	£1,148	£4,274
		Dareem Patel	1	4	£42	£318	1,272	
		xxxxxxxxxxxxxx	1.5	6	£29	£221	£1,326	
		Jo Cheung	1	4	£18	£132	£1,528	
J Mobilisation	4	James Noble	1	4	£76	£574	£2,296	£5,336
		Dareem Patel	1	4	£42	£318	£1,272	
		xxxxxxxxxxxxxx	2	8	£29	£221	£1,768	
		Jo Cheung	0	0	£18	£132	£0	
K Construction	65	James Noble	0.25	16.25	£76	£574	£9,328	£45,188
		Michael Hart	0.1	6.5	£53	£397	£2,581	
		Dareem Patel	0.5	32.5	£42	£318	£10,335	
		xxxxxxxxxxxxxx	1	65	£29	£221	£14,365	
		Jo Cheung	1	65	£18	£132	£8,580	
L Practical Completion	12 Month Rectification Period	James Noble	1	1	£76	£574	£574	£892
		Dareem Patel	1	1	£42	£318	£318	
TOTAL								£85,409

Contract Sum **£1,540,000**
Architects Percentage of Contract Sum **6.5%**
FEE **£100,100.00**

Notes:

- I have assumed an additional 5 days split : 1 James Noble, 1 Michael Hart, 3 xxxxxxxxxxxxxx - This is to allow for dealing with the Local Authority during the 8 week planning process
- I have assumed a number of addition days here for dealing with Tender negotiation as reflected in the number of active weeks on the project. 1 for Tender Action prior to Tender, (assume 4 week tender prior thereafter) then 3 weeks to negotiation prior to stage J.

*Template and notes created with Study Group K

PROJECT:

New Build 7 Storey Apartment Block consisting of 28 units

Project cost to Office

RIBA Job Stage	Duration (Weeks)	Staff Member	Days / Week	Total Days	Hourly Rate	Day Rate	Cost	Total Stage Cost
D Detailed Proposals (Note 1)	4	James Noble	0.25	1	£76	£574	£574	£5,198
		Sven Berg	1	4	£42	£318	£1,272	
		xxxxxxxxxxxxxx	2	8	£29	£221	£1,768	
		Jo Cheung	3	12	£18	£132	£1,584	
E Final Proposals	4	James Noble	0.25	1	£76	£574	£574	£3,786
		Sven Berg	1	4	£42	£318	£1,272	
		xxxxxxxxxxxxxx	1	4	£29	£221	£884	
		Jo Cheung	2	8	£18	£132	£1,056	
F Product Information	4	James Noble	0.25	1	£76	£574	£574	£3,786
		Sven Berg	1	4	£42	£318	£1,272	
		xxxxxxxxxxxxxx	1	4	£29	£221	£884	
		Jo Cheung	2	8	£18	£132	£1,056	
G Tender Documentation	2	James Noble	0.25	0.5	£76	£574	£287	£2,661
		Sven Berg	2	4	£42	£318	£1,272	
		xxxxxxxxxxxxxx	1	2	£29	£221	£442	
		Jo Cheung	2.5	5	£18	£132	£660	
H Tender Action (NOTE 2)	4	James Noble	0.5	2	£76	£574	£1,148	£4,274
		Sven Berg	1	4	£42	£318	1,272	
		xxxxxxxxxxxxxx	1.5	6	£29	£221	£1,326	
		Jo Cheung	1	4	£18	£132	£,528	
J Mobilisation	2	James Noble	0.5	1	£76	£574	£574	£1,652
		Sven Berg	1	2	£42	£318	£636	
		xxxxxxxxxxxxxx	1	2	£29	£221	£442	
		Jo Cheung	0	0	£18	£132	£0	
K Construction	52	James Noble	0.25	13	£76	£574	£7,462	£34,086
		Sven Berg	0.5	26	£42	£318	£8,268	
		xxxxxxxxxxxxxx	1	52	£29	£221	£11,492	
		Jo Cheung	1	52	£18	£132	£6,864	
L Practical Completion	12 Month Rectification Period	James Noble	1	1	£76	£574	£574	£892
		Sven Berg	1	1	£42	£318	£318	
TOTAL								£56,335

Contract Sum

£1,232,000

Architects Percentage of Contract Sum

5.5%

FEE

£67,760.00

Notes:

1. I have assumed an additional 2 days split : 0.5 Sven Berg 1.5 xxxxxxxxxxxxxx, This is to allow for dealing with the Local Authority during the 8 week planning process
2. I have assumed a number of addition days here for dealing with Tender negotiation as reflected in the number of active weeks on the project. 1 for Tender Action prior to Tender, (assume 4 week tender prior thereafter) then 3 weeks to negotiation prior to stage J.

*Template and notes created with Study Group K

Question 3

ndg architects

Inter Office Memo (e-mail)

To: James Noble (*james@ndg.co.uk*)

Cc:

Bcc:

From: XXXXXXXXXXXXXXXXXXXX

Date: 7th September 2011

RE: DERRY HALL, STOCKBRIDGE – HOTEL DEVELOPMENT

James,

This is a very difficult situation. I trust that all parties will be able to act in accordance with the contract in this instance. Any dispute at this stage would make matters much worse for the client in particular, especially considering the fact that the hotel already has guests booked and an opening ceremony agreed.

As a suggestion, I feel we should follow up our phone call to the client with another advising him to contact his insurers and advise them of the situation immediately. Furthermore I'm sure that as the Hotel is due to open not only may paying guests be disappointed, but there will more than likely be staff that will require paying as well as any orders placed for any supplies the hotel needs. He may wish to consider making alternative arrangements for these.

Although this seems like a very difficult situation, particularly for the contractor given that the business will unlikely survive this matter, the contractual situation is very clear and thankfully puts a lot of power in the hands of the employer.

As a first step I assume that the Contractor has formally notified the employer of his impending insolvency (the definition of this is determined under clause 8.1.4 in the contract), under clause 8.5.2 of the contract. This I assume has already taken place given your discussion with the client and the contractor on this matter. If it has not, I suggest that the contractor do so in writing today without fail. Issues surrounding Insolvency are dealt with under the Insolvency Act 1994. I suggest we obtain a copy for reference in this matter.

Under the contract the employer now has the power to make the next decision in the process. Under Clause 8.5.1 the employer is now fully entitled to terminate the contract immediately, or consider a more constructive approach to matters. However, given that the contractor has made notice of his insolvency under the contract, his obligations, as stated in Article 1 of the contract, and his obligations to carry out the works and the design of any Contractors Designed Portion are suspended. This is stated under clause 8.5.3.2.

The employer should therefore make immediate provisions to safeguard the security of the site and any unfixed materials. This should take place regardless of whether the employer wishes to terminate the contractor or give him time to assess the situation and make any necessary proposals.

If the employer does not wish to terminate the contract under clause 8.5.2 then he may wish to give the contractor time to properly assess the situation and make a proposal to the employer in regards to the completion of the works.

Once the notice has been served by the contractor to the employer then any payment obligations under the contract will cease to apply, as stated in the contract under clause 8.5.3.1

From this point there are three options that can be pursued:

1. The contractor and the employer may make an agreement to complete the works, this may be possible given that the works are 80% complete. However it would still be down to the contractor to ensure funds are available to complete the works. Given their record to date, I would be minded to give them the opportunity to make such a proposal whilst the client considers his/her options.
2. If the client chooses to terminate the contract of the now insolvent contractor then another contractor may be novated to complete the works. This can occur in one of two ways, the first being a true novation. This is where the new contractor would be subject to the original obligations of the contract and would be required to complete by the stated completion time and within the stated contract sum. The other option would be:
3. Conditional Novation – This would be where the contract would be renegotiated, including the completion date, contract sum would be subject to negotiation. Furthermore the new contractor would, under this instance, more than likely wish to agree that liability for the works completed to date fall under the liability of the original contractor.

As said above, I feel it may be prudent to first await any suggestions from the original contractor before proceeding any further. This may prove to make matters easier on all parties. However in the event that no agreement can be made and the contract is terminated then options 2 and 3 above would need to be considered. However it is more likely that option 3 would need to be taken as it is unlikely that any contractor would take on liability for the completed works to date by the original contractor as in option 2.

There are however further consequences to consider in terminating the contract with the insolvent party.

The contractor must make arrangements for any plant, tools, temporary buildings etc to be removed from site under clause 8.7.2.1. However this must only be done upon the Contract Administrator making such a request in writing. Furthermore the contractor must supply the employer with two copies of all Design Documents under clause 8.7.2.2.

Upon termination, as stated above, the normal provisions for payments are ceased under clause 8.7.3 and the employer is under no obligations to pay any outstanding certificates. Although it must be considered if a dispute arises then the employer would still be obliged to pay any amounts awarded by adjudicator (please see Case Law regarding Ferson Contractors Ltd vs Levolut A.T2 003).

It should also be noted that under the contract and within a reasonable time after completion of the works a final account with the contractor should be prepared under clause 8.7.4. These would include any amount of expenses incurred but the employer, any amounts made payable to the contractor, the total amount that would have been payable under the contract, these are set out in clause 8.7.4.1, 8.7.4.2 and 8.7.4.3.

The employer does retain the right to utilize any plant, goods, materials etc not owned by the contractor to complete the works, under clause 8.7.1. Furthermore the employer can require the contractor to assign the benefit of any sub-contractor to the employer under clause 8.7.2.3.

This is obviously a difficult position for all parties but I feel it best to proceed under the following:

- Ensure that the contractor has notified the employer of the apparent insolvency and his intent to appoint an administrator. This, if it has not already been done, should be done immediately.
- Arrange a meeting as soon as possible, to discuss the options open to the client that he/she has under the contract as listed above.
- If the client wishes to give the contractor time to come to a proposal to complete the works then arrange a further meeting to allow the contractor to make any such proposals.
- If in agreement then the contractor may complete the works, if not then the client may wish to terminate the contract.
- The client should by this point made any provision to safeguard the site.
- At this stage, we along with the client should be seeking alternative contractors to complete the works under options 2 or 3 listed above.
- We should ensure that our information is up to date at this point and that all records allow us to properly determine the level to which the insolvent contractor has completed the works. This will aid us and the employer in preparing the final account for the insolvent contractor upon completion of the works.
- We should arrange to discuss with the contractor the details of any sub-contractors and whether any work is forthcoming, I seem to remember the external staircase was being completed by a specialist and is not yet on site. The benefits of this agreement should be passed to the employer as soon as possible if the contract is terminated.

I trust the above information is of help to you James, although this is a difficult situation to be in, the contract is very clear and the employer retains the overall control of the situation. Furthermore it may be prudent to contact our PII insurers as it could develop into a dispute situation where we are being blamed for suggesting the contractor in the first place. I doubt this will happen but I would think it prudent to do so now rather than later.

Kind regards,

XXXXXXXXXXXXX

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References:

Study Group K Notes
 JCT Standard Building Contract with Quantities 2005 (Revision 2 2009) (SBC/Q)
 Guide to SBC05, by Sarah Lupton
 Architect in Practice, 10th Edition, by David Chappell and Andrew Willis
 Architects Legal Handbook, 9th Edition

Question 4

ndg architects

Inter Office Memo (e-mail)

To: Belinda Carter (*belinda@ndg.co.uk*)

Cc:

Bcc:

From: XXXXXXXXXXXXXXXX

Date: 7th September 2011

RE: MADCHESTER ACADEMY

Belinda,

Please see below for notes on the questions raised. I trust they are of aid to you and the client. Considering that we have an established relationship then it would seem a good step for both parties to continue their relationship with future projects. However the first question you ask raises the question of whether academies are considered public bodies or not. As the schools in question are considered academies now they are now funded at least in part by the government and as such are considered to be public work.

Public work is deemed publishable under the OJEU tendering scheme within the EU. This system allows for total transparency and allows for the public to see how government money is being spent. This can be a long and drawn out process, whereby the project is required to be listed in the OJEU Journal and tenders invited from different architectural firms. This allows for fairness and openness within the project. Architectural Firms would be required to bid for the work and present their work at various stages before being chosen to act as the Architectural Consultant for the project.

Therefore the work would be required to be published via OJEU within their weekly journal. In this instance we would be required to tender for all works individually in this manner. This would depend on how the consortium wished to proceed with their proposed works. They could either post them individually or as a number of projects (with potential future projects built in to the agreement).

Under this scheme we would be required to write an expression of interest letter and this would be followed by a questionnaire issued by the consortium to the tendering firms. Following this the consortium may wish to select a small group of firms to interviews where they could present any initial work at their own costs. This would then be broken down further over a number of interviews to determine the successful practice. The key to this system is normally the fee proposal. The difficulty at this stage, particularly for NDG Architects would be that some work may be required without any fees. At present I realise we are stretched and this may prove unwise. However a successful tender may acquire a decent volume of work and more importantly fees for the practice.

The consortium is bound to go through this system, under EU legislation, as the proposed work is government funded. However this would give the opportunity for the consortium to seek alternative designs and fee bids from other Architects, although I realise this is potentially damaging for us. If unwanted the process could be very time consuming and long but is, as stated, required under EU legislation.

As you know we were formally part of two framework agreements with two local education authorities and I suggest this is a route we may wish to consider again. A framework agreement is a form of Partnering. This does not necessarily mean a contractual arrangement but more about a culture of working and sets out the way in which all participants should view and manage the project. Partnering is about working together to achieve a clients objectives and adopting a management approach that measures co-ordinated working against KPI's (Key Performance Indicators) and targets.

There are two basic approaches to partnering:

1. All parties enter into a legalaly binding contract that takes on elements of the building contract also. These elements are normally similar to that of a standard JCT Design and Build Contract. This allows the whole process of delivering the project to be dealt with under one contract and will be signed by all parties including most notably, the client, the constructor and any consultants, eg the Architect.

However, this type of approach only works over one building project and although has all the good elements, such as collaborative working, as proposed by the Latham report, is limited to the one project only. An example of this type of contract is the ACA Standard Form of Contract for Project Partnering (PPC 2000).

2. The second option is to enter into a framework agreement. This type of agreement has all the elements of the partnering in mind, such as collaborative working etc but allows for the agreement to exist over more than one project. Like the basic partnering contract this can be entered into by 2 or more parties.

The key difference is that the framework agreement exists separately to the building contract. The agreement in this instance can be non-binding if the parties so wish. Although it still retains the benefits of basic partnering. In this instance there is the flexibility to build a relationship with a set group of parties over a number of projects.

This would be useful in this instance if the consortium wished to enter into an agreement with ourselves to design and administer all their buildings and contracts whilst also making the contractor a part of the agreement to deliver all the projects. The non-binding form would allow the consortium to cease the agreement with either ourselves or the contractor if he so wished, between projects, although both ourselves and the contractor would have the same right.

Another form to consider would be the NEC3 Partnering Option X12.

If they choose to enter into a framework agreement with ourselves this could be with or without a main contractor. This may allow more flexibility as tendering the projects would allow the consortium to maintain a better control over the costs of the projects. Furthermore if they are unhappy with one contractor they would have the option of not tendering to them for future projects.

The client is correct in assuming that Design and Build procurement would place the risk primarily with the contractor. Under Design and Build Contracts the contractor has single point responsibility for all design and construction of the works. However the client should appoint an advisor separately for the duration of the works and given our good relationship to date we may be more appropriate in this role. The contractor would appoint an Architect and any other consultants directly to complete the remainder of the design, these being separate to the agreement with the client, therefore placing the risk and responsibility with the contractor. This route does offer the possibility to begin early on site, which may be helpful to the consortium in

ensuring completion dates ready for the opening of a school or new section of an existing school. However, the responsibility to complete the works rests solely with the contractor.

The drawbacks are that quality may be sacrificed for the early start and placing all risk with the contractor. The contractor may without appointing an Architect use his own in house design team, whose knowledge would be limited to that of an Architect. Furthermore the client has no real control over the contractors overall performance and little say in the choice of sub-contractors or specialists. Flexibility to amend and change items over the course of the build is also not an option for the client. Therefore, although there are clear benefits in terms of cost and time, they are potentially at the expense of quality.

Design and Build may be ideal for some of the consortium's projects although certainly not for all of them. If this approach were adopted within say a Framework agreement, there would be a certain conflict of interests arising. We would potentially be bound to the original framework agreement and also as a consultant to the contractor under the D+B contract. We may better serve the client in this manner as the advisor, but it would be their decision to determine this.

As you have said the consortium would like to consider a wide range of projects including maintenance and refurbishments to their existing building stock, therefore the Design and build Contract may not be wholly appropriate. The JCT suite has a wide range of contracts suitable for different schemes. For example if the consortium choose to perform minor repairs to an existing building, then the MW (Minor Works) contract may be appropriate, if the works are of a simple nature. If the works involved extending an existing building then the IC (Intermediate) or SBC (Standard Form of Building Contract) may be more appropriate. Furthermore all of the above have a version that incorporates Contractors Design Portion that puts more liability on the contract for any items listed under this section of the contract.

A new project may also be administered under any of the above contracts. The MW, IC and SBC contracts offer the client the provision to make variations and changes to the project whereas the Design and Build Contract does not. This therefore ensures that quality is more closely controlled by the client through the contract. However in this instance it may be at the expense of time and cost.

All the contracts have their advantages and disadvantages. However it is down to the client and us as the lead consultant to weigh their concerns in terms of time, cost and quality before determining the appropriate procurement route.

I trust that the above information is of help to you. If you do have any questions then please ask.

Kind regards,

XXXXXXXXXXXXX

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References:

Study Group K Notes - OJEU / Partnering / Framework Agreements / Procurement routes

Question 5

ndg architects

Inter Office Memo (e-mail)

To: James Noble (*james@ndg.co.uk*)

Cc:

Bcc:

From: xxxxxxxxxxxxxx

Date: 7th September 2011

RE: ROSCO INSURANCE – REGIONAL OFFICE DEVELOPMENT

James,

I do agree with you James that does come across as slightly cheeky as he is expecting us to complete the work and return it to him without any fees being charged.

However I have looked into this and the purchaser does have the right under UK legislation to request that all collateral warranties that existed alongside the original contract be re-assigned to him. If the purchase was to go through without this taking place the legally the purchaser would have no contractual link with ourselves, the contractor or any sub-contractor and as such would be required to deal with defects alone.

As I remember the project was completed in November and as such the defects period of 6 months has now passed. However we, along with the contractor and any sub-contractors are still under obligation to assign the original collateral warranties to the new purchaser. However we should first determine the scope of the original collateral warranties and whether it was agreed that they should be available to any purchaser or tenant in this regard prior to proceeding.

I seem to remember that the contract used was the SBC/Q and within Section 7C the contractor is under obligation, upon formal, notice from the Employer to enter into such collateral warranties within 14 days of receipt of such notice. Furthermore Section 7E of the SBC/Q requests that the contractor should also within 21 days of receipt of a formal notice from the employer enable any sub contractors to enter into a collateral warranty with the purchaser.

Therefore I would suggest that, as a precaution, we inform our PII insurers of this development as well as the Contractor and any Sub-Contractor that was involved in the project.

At present I feel we should await receipt of the new paperwork from Rosco Insurance's Solicitor and ensure that they are checked carefully by our solicitor prior to signing and returning them. I have attached a short letter addressed to Rosco, stating that they should also make contact with the Contractor requesting that the collateral warranties that did exist, be entered into with the purchaser as well as there request for the same outcome with any sub-contractors collateral warranties. Furthermore I have stated our intention to provide the same once we have had the opportunity to review them ourselves and by our solicitors.

I trust the above information has been of help to you. Please see attached letter also.

Kind regards,

XXXXXXXXXXXXX

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Assumptions:

I have assumed that the contract was a JCT Standard Building Contract with Quantities 2005 (Revision 2 2009) (SBC/Q)

References:

Study Group K Notes
 JCT Standard Building Contract with Quantities 2005 (Revision 2 2009) (SBC/Q)
 Guide to SBC05, by Sarah Lupton
 Architects Legal Handbook, 9th Edition

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Cucumber Tower
Budgie Wharf
London

7th September 2011

Dear Mr J I Poundwise,

RE: ROSCO INSURANCE – REGIONAL OFFICE DEVELOPMENT

I trust you are well. Can I further state my disappointment that we were unable to proceed to the 'fit-out' stage of the project. Alas, we trust you would consider us for any future developments you have planned.

I note your request to pass on the original collateral warranties that existing alongside our contractual agreement; please refer to your original Form of Appointment with ourselves and the Project Data pack that accompanied it. Furthermore, in respect of the collateral warranties that existed under the Building Contract, in this instance the SBC/Q 2005 REV2 09, you are within your right to request such collateral warranties from the contractor and subcontractor be passed onto the purchaser under Sections 7C and 7E of the contract.

Those collateral warranties that existed with the contractor and any sub contractor should be requested by you to the contractor. Once done so the contractor is required to have these passed to the purchaser within 14 days and enable any sub contractors to do so within 21 days.

We await copies of the information from your solicitor and will return them in due course once they have been correctly reviewed by us and our solicitors. We will endeavour to have these returned to you as soon as possible as we note you are anxious to complete the sale before the end of the third quarter of the financial year.

I trust this information is of use to you and look forward to working with you again in the future.

Yours Sincerely

James Noble
Director

for and on behalf of **ndg architects**

ndg architects ltd

directors - James Noble - Belinda Carter - associate directors - Michael Hart - Sue Allen
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Question 6

ndg architects

Inter Office Memo (e-mail)

To: Belinda Carter (*belinda@ndg.co.uk*)

Cc: Sue Allen (*sue@ndg.co.uk*)

Bcc:

From: xxxxxxxxxxxxxxxx

Date: 8th September 2011

RE: PART 3 EXAMINATION – HEALTH AND SAFETY

Belinda,

To be honest it appears quite unbelievable that so many errors could be made by the individuals involved. I've tailored my answers to each of the points you have raised and set them out below:

1. I feel that all persons and organizations are at some degree of fault. Let me start by going through each person/organisation individually.

Hook Line and Sinker and Architect James Hook – I feel they have acted particularly irresponsibly in this matter. They have clearly failed to properly instruct the young student of his own responsibility whilst being on an active construction site. Given the fact that he had no protective clothing (hard hat, site boots etc) or any high visibility jacket, they are clearly at fault for not ensuring that the student was properly protected during his solo visit. I doubt very much whether he was issued with any of the same safety clothing during his first visit with the Architect and whether Mr. Hook was wearing anything similar himself. On another note I feel the Architect has acted particularly irresponsibly in allowing the young student to visit site alone and possibly instructed him to photograph the section of the building where the accident occurred. He should have accompanied him there, or at least ensured that another member of staff was with him at the time. Furthermore, considering the fact that he was a young student completing work experience the accident seems somehow worse. The practice has clearly not paid any thought to the health and safety of the student whilst under their care.

John Settle (Student) – In spite of this I do feel some of the blame for the accident lies with the student himself. Although the practice and the Architect are clearly at a higher degree of fault, I do not understand why this was not questioned by the student. Furthermore why has he taken it upon himself to gain access to a dangerous part of the site, whilst alone and without any protective clothing or boots? Furthermore he has placed himself in further danger by attempting to climb the scaffolding. There should be procedures in place by the practice to prevent this kind of behaviour, but first and foremost you should have a duty of care to yourself as a responsible individual when conducting inspection or survey work on an active site. However, as stated he may not have been made aware of this by the practice.

Madchester Cathedral and the Estates Division – Why have both organizations allowed the student to enter the site alone and without any protective clothing? During the course of events both have had ample opportunity to prevent the student access and suggest he return to the practice. At no point, it appears, was the student questioned on why he required access to the dangerous and active section of the site or why he had no protective clothing. At the very least the Estates Division could have ensured that he was accompanied to the site after visiting the offices. Furthermore Madchester Cathedral is at fault for failing to ensure health and safety is being considered on their active site. They along with the estates division who I assume have possession of the site as the effective ‘contractor’ appear to have no competent foreman or staff on the premises to prevent such an event potentially occurring again.

2. I feel that all of the above members will face some level of prosecution for failing to ensure the safety of an individual on an active construction site. The Cathedral and its Estates Division have clearly disregarded all of the duties regarding health and safety. They had the opportunity to prevent the student access and ensure that he was properly protected on site. Furthermore they let him venture onto the site alone. The practice and the Architect will face prosecution for failing to ensure the student has the correct level of protection of site and worse that he was sent their alone, without supervision or aid.

3. The following statutory instruments have breached in some form, the following are key sections of the Health and Safety at Work Act 1974.

- Health and Safety (First Aid) Regulations – There is no mention of the any member of the estates division aiding the student upon the accident and as such it appears that they have either not had the sufficient training or have neglected to act when required when the accident occurred.

- The Health and Safety Information for Employers Regulations – I could be mistaken as the practice may have made the student aware of these and he may have chose to ignore them. However it appears that the practice have either not stressed their importance strongly enough or worse not at all.

- The Workplace (Health and Safety and Welfare) Regulations – The estates division and the cathedral have failed to ensure the safety of individuals whilst on the active construction site.

- The Personal Protective Equipment at Work Regulations – Employers have a duty to ensure their employees are protected whilst at work, this includes whilst on site. This covers protective clothing, hard hat, goggles, high visibility clothing, boots etc, none of which appears to have been offered or issued to the student by either the practice or the estates division.

- The Construction (Health and Safety and Welfare) Regulations – The estates division and the cathedral are in clear breach of failing to ensure safety whilst on the active site.

Furthermore the Construction Design and Management Regulations (CDM) have clearly been breached by all parties for failing to ensure the safety of an individual whilst on site and failing to ensure that each other party is carrying out their duties correctly and with proper care.

4. Hook Line and Sinker should have done a number of things immediately upon the accident occurring.

- As a duty of care the student's next of kin should be informed immediately.
- Any incident occurring on site should be reported immediately under the RIDDOR Regulations (Reporting of Injuries, Diseases and Dangerous Occurrences Regulations). Any incident needs to be reported to the HSE (Health and Safety Executive) within ten days by completing the appropriate F2508 form. This would apply for both a minor injury and whether the injury affected the employee for three days or more. Furthermore even though the practice is at some degree of fault the HSE should be informed of the negligence of the Cathedral and the Estates Division.
- The practice should inform their PII insurers immediately of the situation and keep them up to date with any developments.
- For advice on dealing with accidents The HSE Incident Contact Centre will be able to advise and take details of the occurrence.

5. It appears that Hook Line and Sinker do not have the correct procedures in place to ensure the safety of their employees. They should consider the following:

- Having a current and up to date health and safety policy as a company and ensure that all employees are aware of it and what duties they have under it to ensure that it is being carried out.
- A procedure should be adopted for visiting site. All employees should be issued with the appropriate level of protective clothing for the level of activity for the site. This should be a requirement and should be recorded as the employee leaves the office. Furthermore any visits to site should not be taken solo. Any employee should be accompanied by another.
- They could adopt a stricter policy by adopting the ISO 9001 Quality Management system. Although this relates to a wide range of activities and procedures within the office, it would ensure that as part of it Health and Safety whilst visiting site was considered and regularly monitored to prevent any future similar occurrence.

I trust the above information was of use to you, if you do have any questions then please do not hesitate to ask. I've copied Sue Allen into this email also, maybe as a thought we should consider having our own procedure for visiting sites to try and prevent this sort of accident.

Kind regards,

XXXXXXXXXXXXX

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References:

Study Group K Notes - Health and Safety / CDM / RIDDOR (Reporting Incidents)

Question 7

ndg architects

Inter Office Memo (e-mail)

To: James Noble (*james@ndg.co.uk*)

Cc:

Bcc:

From: xxxxxxxxxxxxxx

Date: 8th September 2011

RE: TOWNSVILLE MASTER PLAN

James,

Please see below for my notes on the potential planning issues we should consider:

- First we should access the Local Development Framework (LDF) for guidance on the area at large. Furthermore I'm certain the client who is developing the scheme will have a certain brief at present and this may or may not conflict with the LDF. There may be some key factors that make up the Framework that affect our plans and the clients designs and these should be addressed at this early stage, otherwise the exercise is a pointless one as we are fighting a losing battle.

As you have stated some of the sites have been allocated as specific future projects eg housing, commercial, therefore it may be the case that some of the other sites or even surrounding areas having been designated for some other future scheme which may work in favour or against our proposals. Either way, with the Framework, we can work to its guidelines and plans and produce a more coherent master plan for Townsville, incorporating both the clients and local authorities' desires. Local Development Frameworks are set out in PPS 12: Local Development Frameworks.

- We need to aware of any potential upcoming changes to the Framework as this has become an organic document that is constantly evolving. As such the Master plan, which may take a high number of years to complete, should be completed in line with the future plans of the authorities. As an example flood plain lines are constantly readdressed and these should be considered at an early stage as they would have a major impact on our choice of site for the development in question.

- As a next step we should look at the relevant PPG (Planning Policy Guidance) and PPS (Planning Policy Statements) that may effect our proposals for the scheme. There are a wide variety of these, all of which could have some impact upon our designs. As an example we should consider the following:

- o PPS 1: Delivering Sustainable Developments – how sustainable do we or the client wish the scheme to be and is it in line with the PPS.
- o PPS 5: Planning for Town Centres – this sets out the government policy for future of town centres and should be a high priority for us.

- o PPG 13: Transport – any large scale development is likely to have a major effect on the transport infrastructure of the town, as such we should look at the guidance on this.

- o PPG 15: Planning and the historic Environment – Townsville as I remember is quite an old town, therefore we may be in the situation where the areas considered are conservation areas which will mean much stricter guidance will be in place on the design and scope the clients developments. Furthermore trees within Conservation Areas are automatically protected with TPOs (Tree Protection Orders) which we may also need to consider depending on what site the client chooses to develop. In addition any number of the existing building within the Master plan area may be listed and as such demolition or amendment to them may not be granted, this should be factored into our design process and decisions.

- o Many of the other PPS and PPG may be relevant but I feel the above at present clearly have and impact on our design and decisions at this stage.

- We should consider making early contact with the local authority and consider a pre-application for outline planning permission. This would help to engage with the local authority and bring them on board with the scheme at an early stage.

- In specific regard to our application we need to consider the fact that any application may be conditioned. This could mean the following:

- o Any listed building or building within conservation areas may incur more planning approval conditions regarding work than another non-listed building, as such ensuring the safeguarding of the historic environment.

- o The works will have to begin within three years of gaining approval otherwise we would need to reapply.

- o In specific regard to transport we would need to consider the Grampian condition, which requires that all off site amendments are completed first before the development begins. As such this would require that any amendments required to the transport infrastructure be carried out before the development. This is to ensure that the infrastructure is in place to support the new development when it is completed.

- Furthermore we should consider the time line in the planning process. First we need to consider how long it would take us to complete the required level of information. This would include all drawings, as well as a detailed Design and Access Statements as well as an Environmental Impact Assessment. In addition we may need to submit details of any site surveys that were carried out to test the sites for contamination etc. The planning process if we choose to apply directly for full planning approval would take a minimum of 13 weeks (commercial use) for the local authority to consider. We would have the right to withdraw this at any point and upon a refusal we would also have the right of appeal. This may require us to present the scheme to the Local Authority committee which may incur more time and costs for the clients as well as us.

- In addition any approval may be given with a section 106 agreement condition. This agreement will be put in place as a condition of the application. This would ensure that the developer's aides some other adjacent development or puts funding into a local amenity as part of the development.

Please see below for my notes regarding the potential sites:

Site 1:

Being located in the centre of the Core Retail Area it seems an appropriate place for the location of the new supermarket. The existing 1970s centre is heavily used but dated and some units remain empty. This trend is only likely to continue as the building becomes more and more outdated. The supermarket would be replacing a number of retail units, but the adjacent land has been earmarked for a commercial redevelopment as part of the master plan and would be able to house the remaining tenants within it. This would also move the shopping centre directly to the centre of the core retail area (main street) and as such, in time, form the new heart of the town.

Furthermore the location offers the opportunity to readdress the street elevation on the main street running through the core retail area. The existing 1970s centre although highly used is unsympathetic to some of the older buildings and has become tired over time. This site would allow us to address this and re-establish some clear design strategy on the street scape in Townsville.

The down side would be that the sites corner location may offer a difficult design challenge. Although we are obviously happy to accept such a challenge this may be time consuming and eat into our profit margin the more time we spend on it. The same could be said of the dealing with the new street scape onto the main high street. We would need to ensure that we kept focus on our primary objectives of delivering the new supermarket.

Furthermore the new supermarket would obviously require parking facilities, which may be difficult to incorporate into the same site. We would also need to consider access to the site and any amendments we would be required to make to the existing transport infrastructure. The site is close to the most likely busy crossroads at the edge of the main street and as such the increased level of traffic so close to the uncton may damage to the proposal.

Site 2/3:

Sites 2 and 3 may offer a better location for the proposed new supermarket. The larger sites would enable the scope of the works to be increased potentially and would make incorporating a car park and possibly make any amendments required to the transport infrastructure easier to accommodate. The new car park could also double up to act as car parking for the town centre for which it is already in use.

An issue would be in acquiring the land currently used by the community centre. This is currently privately owned and as such would make development here difficult. I feel for the success of site 2, site 3 would need to be acquired and incorporated as a larger site. If site 3 were to remain independent we would surely be entering the situation were access to it were a problem. This would surely need to be maintained and would make developing site 2 more difficult as the constraints would be significantly higher.

Site 5:

At first site 5 seems an unlikely proposal due to the location of the existing adjacent Co-Op Food store. However locating the two superstores adjacent to one another may be beneficial in benefiting from the existing transport amendments. The provision for parking would need to be increased so the size of the site may be inappropriate, but with adjacent site 7 no longer earmarked for the health centre we may be able to accommodate part of our proposal in site 7 also.

Furthermore the site currently exists outside of the town centre boundary but within the master plan. Locating the superstore here would increase the size of the town thus allowing the core retail area to remain for high street stores and shops rather than filling a the area with one supermarket.

However we would have to consider the ownership of the existing land and whether we would be able to use the existing entrance to the Co-Op Food Store to access Site 6 or even Site 7. They may have to consent to the use of the land or even reject the proposal out of hand, rendering the option dead.

As a further note I would like to note that the Site 4 be earmarked as a potential car parking area. If sites 1/2/3 were to be redeveloped, it would be more beneficial to develop them with a commercial use in mind, locating them closer to the core retail area. Locating the car park at site 4 would be beneficial to any new developments and remove the need for moving traffic near the centre of the town. This would put less of a strain on the existing transport infrastructure, as access in and out of the town may be eased. However we would need to consider that the Pub is privately owned and the current owner may not wish to part with the land.

I hope the above information is of help to you. I look forward to putting the tender bid together with you. As a further note, I would like to thank you for the potential opportunity of working on the scheme if it does come off. I am relishing and enjoying the extra responsibility and feel that I am learning a lot because of it.

Kind regards,

XXXXXXXXXXXXXX

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References:

Study Group K Notes - Planning / Site Appraisals

Question 8

ndg architects

Inter Office Memo (e-mail)

To: James Noble (*james@ndg.co.uk*)

Cc:

Bcc:

From: xxxxxxxxxxxxxx

Date: 8th September 2011

RE: MAGAZINE ARTICLE – BUILDING TODAY – VALUE MANAGEMENT

James,

Please see my notes below on my responses to the issues raised regarding delivering value.

1. Our Service:

Clients view value in different ways. It is hard to quantify some aspects of value such as the social or cultural value and some clients may not be interested in value in this format. However it is, I feel, our responsibility to determine where this lies at the outset of a project to ensure we are delivering value for money for the clients specific needs. There cannot be a blanket approach; although there are some things we can consider that will apply to all projects to help us achieve this.

My first point is regarding our Fees. We do not want to continually enter fee bids that are too low and do not even cover the cost of the project to the office. This would be damaging not just for our clients but us and the industry also. We have a responsibility to ensure that pay for younger architects and students remain at a high level by charging the correct level of fees. How can we expect to deliver value for money if we are unable to pay our employees because we are charging low fees? Therefore I feel we have a responsibility to ensure that fees remain at a level, but we should ensure that we are delivering value because of it. In order to charge these higher fees we need to demonstrate how as a practice and as a business we are able to deliver that value that a client so desires. So how can we do this?

First of all we should ensure that we are marketing ourselves correctly. We shouldn't be marketing ourselves in terms of 'What we do' but more in terms of 'What we can do for you'. Our marketing material should be geared towards how we can demonstrate value for money and how we can provide this to perspective clients.

We need to establish with new clients how we are quantifying value for them. We could utilise, for example, DQI's (Design Quality Indicators) which are provided by the Construction Industry Council. This would enable use to measure the value of the design and construction of new buildings as well as the refurbishment of existing buildings. RIBA also produces a Value Toolkit which could be utilised to measure our performance in delivering value to clients.

Furthermore as a small practice we could look at our own costs to running the business and determine all costs in terms of the following headings; must have, nice to have, optional, waste. This will enable us to establish a minimum base cost to ourselves in delivering a project. Therefore we are in a position to offer clients a 'no-frills' options in order to keep their and our own costs at a minimum and add on the additional costs as and when the scope of works or client desires it.

2. Our Designs

When developing our designs we should be mindful of our client's specific needs and outcomes of the project and tailor our design to achieve the specific value for money they so desire. We should be considering all aspects of our clients operation and ranking them accordingly to produce the best design for them. CABE have produced a publication on how to evaluate different types of Quality. The Value Handbook – Getting the Most From Your Buildings and Spaces identifies 6 areas in which we can quantify value:

- Exchange value: The buildings value commercially, this is key to developers but may not be as highly important to someone refurbishing their home.
- Use Value: How and effective building brings its occupants improved productivity, profitability and possibly repeat business. Again this may be more important to a developer client as opposed to a private client refurbishing or building a new home.
- Image Value: this is hard to quantify until completed. This would be the image it produces for the client or the end user. It may demonstrate the quality, standard or prestige of the owner/ occupier/user. This may be true in most cases, particularly with businesses, or even a homeowner who wishes to promote himself through the design quality of his/her own home.
- Social Value: Again this is hard to measure but refers to the wellbeing and social pride a building may bring to a community. The effect of this could possibly be seen in better social cohesion or even reduced crime depending on the type of building or development. A new leisure centre for example may offer communities amenities they previously went without.
- Environmental Value: This can be possibly be measured more so than social value. It will relate to the environmental benefits in terms of use of resources and energy and long term sustainability. Some clients may not be concerned with this but as Architects and designers we have a responsibility to make them aware of their responsibility to the environment and encourage the adoption of sustainable designs.
- Cultural Value: Probably the hardest to value correctly. This will deal with the contribution to cultural heritage, a sense of place and identity. This does not just mean iconic buildings but also buildings of our past, our heritage which should be maintained.

Using the above topics we can decipher a clients specific desires and advise them correctly on what they potentially should value more so than they do, particularly in the case of environmental Value. Therefore we will be able to gauge the success of providing value for money from one project to the next.

Furthermore we should be ensuring that as Architects we have a key responsibility within the design team to ensure that value is being achieved across the projects through other consultants and is still rated against the factors listed above.

3. Our Process

Regarding our service in terms of delivering value there are a number of things we could consider. We could adopt a system of value management to help gauge how well we are delivering value for money in our projects. Value Management is a style of management that is dedicated to motivating people, developing skills and promoting innovation. The aim is to maximise the overall performance.

Value management considers value over the whole duration of a project and the buildings lifetime. For example at Pre-Project we would consider whether the balance between function and cost maximises revenue for a client. At Concept Design Stage we would develop a brief with the client and determine which functions the client values most highly and tailor the design towards it. Furthermore Value Engineering enables us to provide the best outcome during the pre-site and construction phase, ensuring the best solutions are found without unnecessary costs. Therefore we could utilise such a system to ensure that we are recording our performance and ensuring that procedures are in place to reward this or improve this as required.

Value Management is consistent with the RIBA Value Tool Kit. As a medium size practice we could utilise the RIBA QM Toolkit. This would enable us to have procedures in place to help us to develop and deliver our projects more efficiently and in turn deliver value for money for our clients. The system would allow us to regularly check and record our performance and adapt accordingly were required to improve our performance in delivering projects. We could also choose to adopt the ISO 9001 Quality Management System which would enable us to put procedures in place that would help us gauge how we are delivering value for money in out projects. The RIBA Value Took Kit has been brought in line with ISO 9001.

In house we could run value management workshops to evaluate our employee's performance in delivering value in our projects. In addition we should adopt value engineering across the board, meaning that we evaluate other design team members as well as are own to ensure that the client is achieving the best value from the project.

With such procedures and guidance in place we should be able to evaluate our role within the team and how well we are delivering value for money for our clients. This should be an ongoing process where we are constantly inviting feedback and using the systems we have in place to amend our performance accordingly.

I trust the above information is of help to you. Any questions then please do not hesitate to ask me.

Kind regards,

XXXXXXXXXXXXX

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References:

Study Group K Notes - Value Management / Quality Assurance

Building Design (BD), 16th July 2010, What I need to know to keep up with changes in employment law?, Show how you can add value, Patrick Perry and Richard Brindley

Building Design (BD), 21st May 2010, Is there anything we can do to tackle the problem of low pay?, Increasing Value, Patrick Perry and Richard Brindley

Building Design (BD), 18th September 2009, How can I cut my costs further?, Richard Brindley

Question 9

ndg architects

Inter Office Memo (e-mail)

To: James Noble (*james@ndg.co.uk*)
Cc: Belinda Carter (*belinda@ndg.co.uk*)
Bcc:
From: XXXXXXXXXXXXXXXX

Date: 8th September 2011

RE: THRISTIE HOSPITAL ASEPTIC SUITE

James,

See Below for my recommendations and my proposed response to the contractor regarding the three issues he has raised in his fax:

1. The Employers decision to prevent the removal of waste as specified in the Pre-Contract Documents.

- My first point would be that the project commenced on site on the 8th August 2011 and we are now approximately 5 weeks into the contract. The contractor has stated that he had only begun strip out works earlier this week. Why has it taken so long for the strip out works to commence. Especially given that the contractor is aware that we are working to a very tight 17-week fast track program.

- Regarding the clients apparent 'change of heart' regarding the removal of waste, we should contact the client immediately to discuss this decision. We have not been made aware of any such decision and as such the contractor has been put in a difficult position.

- At present the client appears to be preventing the contractor to remove the waste from site as, he claims, is stated in the contract documents. I am unaware of whether this is the case or not and we should first check where it has been stated that the waste can be removed via the lift in this manner.

- If it is the case that this was agreed and the client has changed their mind then at present they are in breach of the contract as they are preventing the contractor from accessing the section of site to which It was agreed in the contractor documents they were within their right to use.

- Furthermore this 'change of heart', if the client wishes to continue in this manner will be deemed a variation under clause 5.1.2.1, which states that the employer has alerted the agreement to enable the contractor to access or use specific parts of the site.

- In this instance the contractor has acted accordingly in informing us immediately of the potential delay to the contract and potential cost to the client as it is deemed a variation under the contract. Furthermore if there were a delay then the contractor would be entitled to request and extension of time under clause 2.20.1 and potentially claim any loss or expense under clause 4.17.

- I suggest that we advise the client against making this change, we should make a phone call immediately advising him of the above and follow this up with a formal email or letter. Furthermore I feel we should advise the contractor that we will be advising the client as such and at present there is to be no claim for an EOT or loss and expense until otherwise noted. We should also enquire as to why the strip-out works were commenced so late into the program.

2. Request for early valuation for the payment to the named sub-contractor.

- I am assuming that as the contractor has stated the sub-contractor has been specified within our specification, that means that he is a named-sub contractor under procedure one of the contract. I assume that we have supplied him with a full description of the works and therefore carried out our contractual obligations.

- It is currently 5 weeks into the contract and it appears that he has not yet entered into an agreement with the sub contractor. Under the contract the contractor should do so within 21 days of entering into the main contract enter into a Named Sub-Contract Agreement with the named sub-contractor. It appears that he has not. This is stated under clause 3.7.

- Under Schedule 2 paragraph 1 he should inform us in writing once this has been done. However under Schedule 2 paragraph 2 he should inform us if he is unable to comply with clause 3.7. He has done neither and is in breach of the contract.

- At present there is a danger of this causing a significant delay to the contract. Under Paragraph 117 of the IC Guide the contractor should take full account of the sub contractors requirements. In this case the contractor has clearly not done so, and has not made provisions for payment.

- We should therefore request why the sub contract agreement has not been put in place and why we have not be informed for any reason. At present we should state that we wish the work to be carried out by the sub contractor and that the contractor should make arrangements as soon as possible for this to be done. Furthermore we should inform the client of the potential delay that may occur in this instance and that the contractor will not be entitled to Loss or Expense or an EOT regarding this matter.

3. Specification of the Doors

- The contractor is seeking to change the specification of the doors and seeks an additional cost for this.

- The contractual situation here is clear. The new doors, if we choose not to agree would not be in accordance with the contract documents, clause 3.15.1.

- The contractor is aware of the programme and the specification and should have made provisions to ensure the doors arrived on site on time. Therefore we are entitled to insist that the doors be ordered as per our specification and the contractor would be required to ensure the project is completed on time. If the situation arises that he does not complete on time then any request for an EOT or loss and or expense would be refused.

- However given that the completion date is crucial for the next phase of the project. We should inform the client of this development and request that they decide whether to proceed with the specified doors or the new ones suggested by the contractor in order to prevent the delay. If we were to proceed with the new doors the additional cost would be met by the contractor under clause 3.15.1

I trust the above information is of help to you and if you do have any questions then please do not hesitate to ask. Please see letter to the contractor attached.

Kind regards,

XXXXXXXXXXXXX

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References:

Study Group K Notes - Contract
 JCT Intermediate Building Contract 2005 (Revision 2 2009) (IC)
 JCT Guide to the IC05
 Guide to ICC05, by Sarah Lupton
 Architects Legal Handbook, 9th Edition

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Bill Dittwong Construction Ltd
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8th September 2011

Dear Sirs,

RE: THRISTIE HOSPITAL ASEPTIC SUITE

We write to you in response to your fax received on 7th September 2011. We note that you have raised three specific issues. Please see below for our response to each.

1. Access to the Site:

This being in regard to the use of the lift and corridor and as you rightly state was agreed in the contract documents. We note your additional costs required for the amending the 'waste transportation route' and have forwarded the details of this to the client. As we wish to prevent any further delay to the contract we have requested that the client re-consider this request to yourself and grant you access to the corridor and lift as previously agreed.

If it occurs that this cannot be agreed then the amendment would be deemed a variation under the contract (clause 5.1.2.1), which would require an appropriate valuation. We further note that, as you state, you would be requesting an extension of time together with application for loss and expense under clause 2.20.1. At present please note this remains your intention not a formal request.

Furthermore we would like you to clarify your programme. As you state the strip-out works commenced only last week, this being at least 4 weeks into the contract. Could you please clarify why this is the case?

2. Payment to the Named Sub-Contractor:

We note your request for the QS to issue an early valuation but are minded to refuse this request. The contract with the Named Sub-Contractor should under clause 3.7 of the contract be entered into within 21 days of entering into the main contract. We have received no such notification of either your success in this matter or inability to do so. We therefore request that you make sufficient provisions for the work to be carried out by the Named Sub-Contractor and enter into the agreement as soon as possible. If you are unable to do so then you should inform us in writing of the reasoning as soon as possible. Please note that any delay in this instance will not entitle you to a claim for an Extension of Time or any Loss and Expense.

ndg architects ltd

directors - James Noble - Belinda Carter - **associate directors** - Michael Hart - Sue Allen
telephone: 01981 886644 - **fax:** 01981 886655 - **web:** www.ndgarchitects.co.uk

3. Door Specification:

In regard to the specification of the doors we would first question why an order for the doors, as specified, has not already been placed. Secondly, in an effort to aid any delay to the contract could you please forward all specifications and details of the new doors that you propose so that we may review their suitability with the client. Please note that, under clause 3.15.1, if in the event of proceeding with the new doors, there would be not additional cost to the client. Furthermore this would not entitle you to a claim for an Extension of Time or any Loss and Expense. Similarly if it occurs that we are to proceed with the original specification then the same would apply regarding a claim for Extension of Time or any Loss or Expense.

If you have any questions to the above then please do not hesitate to contact me.

Yours faithfully,

James Noble

Director

for and on behalf of **ndg architects**

cc. Adam Antsquisher, Thristie Hospital NHS Trust's Estates Department, Employer

Question 10

ndg architects

Inter Office Memo (e-mail)

To: James Noble (*james@ndg.co.uk*)

Cc: Sue Allen (*sue@ndg.co.uk*)

Bcc:

From: XXXXXXXXXXXXXXXX

Date: 8th September 2011

RE: PRIMARY SCHOOL PROJECT OPPORTUNITY – PRACTICE BROCHURE CONTENTS

James,

It's exciting that we seem to have a number of new interesting projects coming our way! Please see my notes below on what we should include in the practice brochure.

NDG Practice Brochure

- **Practice Mission Statement:** This should be a brief statement about what the company is about, what it stands for, what is its essence? The statement should include; who we are, what we do, what we stand for and why we do it. This should be written in a clear and concise manner. As a thought it should be a cross between a slogan and an executive summary.

- **Practice Structure:** This will be in mostly diagrammatic format and lay out the structure of the company. This should include yourself and your fellow director Belinda alongside at the top with Michael Hart and Sue Allen just below as Associate Directors. This will continue with the structure split at the appropriate levels for Architects, Architectural technologists, Architectural Assistants, Architectural Technicians, Year out students. We will also be required to show how admin and clerical staff fit into the organization.

- **CV's of Key Personal:** These should be brief, say for example limited to one A4 side per person of all key personal likely to be involved in the project. I would say that both the Directors and Associate Directors should be included as standard and we limit the rest to a small handful of staff who are intended to be utilized for the project. The CVs should state the educational background and qualifications of the individual, their key experiences and specifically what they will be able to bring to the project.

- **Approach - Management Quality Assurance:** In this section we will need to describe what Quality Assurance we are engaged with to ensure the smooth running of the business and the project. I couldn't get hold of Belinda or Sue Allen to check what quality assurance we actually hold. However I believe that the RIBA Management Toolkit and the ISO 9001 Quality Management System would be examples of this. I'm certain we would have to show accreditation for anything that we do hold.

- **Health and Safety, Office Environmental Policy:** We would need to show how we confirm to the various health and safety and employment legislation. In terms of Health and Safety, we should at least have a Health and Safety Policy with a member of staff listed as the co-ordinator, I suggest this would be Sue Allen given her involvement with the Quality Management side of things in the office. Furthermore we would have to say how we confirm with the Health and Safety at Work Act 1974.

Furthermore we may need to show records of our Employers Liability Insurance. I seem to remember Sue saying we were listed as an IIP (Investors in People) registered company and as such we should show the relevant accreditation of this.

In addition we should be adopting the ISO14001 Environmental Management system, which states the company's environmental policy, how we intend to limit or deal with waste and other environmental issues.

- **Approach / Design:** To satisfy this section we should pick out some key examples of our work. This shouldn't just be limited to examples of schools that we may have completed but that should probably form the basis of the submission. I think it best to show a wide range of diverse projects with different design approaches and outcomes. We should be careful though, we don't want to go overboard with this section.

- **Consultation – Project Consultants and Specialists:** We should list all the key consultants that we normally recommend a client to engage on a project. This should include at minimum, an example of a; structural engineer, services engineer (M+E), quantity surveyor and CDM co-ordinator. We may wish to include other specialists such as a fire consultant, audio hi-fi specialist, lift engineer – although this will depend on the type and scope of the projects as well as the client's specific needs. We should contact the key Consultants as soon as possible as request they be involved in the project, we wouldn't be able to list them in the brochure unless they were to agree to it.

- **Key Experience:** This should cover the practices experience in the key area, in this instance the delivery of school projects. We should highlight our involvement in a number of schemes that have been completed over the most recent years and explain how our involvement ensured the client was presented with a good product.

- **Awards:** We may wish to include what awards we have been presented with over recent years of the practice. In particular it would be prudent to mention the short listing for the RIBA Starling Prize we achieved for our work in 2010 on the Magpie Hospice project. This, I'm sure will be something clients will be keen to know.

I trust the above topics will be of use in preparing the practice brochure. We might want to take a look at the Good Practice Guide: Marketing your Practice published by the RIBA. I seem to remember on the Part 3 course they mentioned this would be a very helpful for this type of work, after all this is a marketing exercise.

Please see my notes below regarding the potential conflict of continuing the build whilst the existing school is in operation on the adjacent site.

Health and Safety: H+S is going to be more important during this project considering that the school will be in operation adjacent to the active construction site. First we must ensure that the contractor has adequately considered his site set up. This may be something that needs to be negotiated with the client when the time approaches. The contractor will obviously want easy access to allow for the supply and movement of materials, plant and other machinery, but the client will not want the school to be disrupted.

Furthermore the access to the site will be of paramount importance. We will need to ensure that access on and off the site is carefully monitored and that no children are able to easily gain access to the site without the knowledge of the site foreman. I suggest at this point, given that the project is notifiable we should appoint a CDM co-ordinator as soon as possible so these key aspects of health and safety can be discussed at an early stage thus avoiding any unnecessary risk occurring during the construction phase.

Transport: An active school is obviously a very busy place, especially at the beginning and the end of its working day. So too, however, is a construction site. We need to ensure that relevant provisions have been made to ensure that parents are still able to access the school to drop off or pick up their children during the day as well as the bus services being able to operate in a normal fashion. This cannot be interfered by the active construction site. However, we must ensure that access to the site is maintained so that works are not held up due to moving traffic at the peak times around the existing school. This will have to be carefully considered as one should not affect the other, whilst we must also consider the health and safety of a large volume of children being near or around the site at the beginning and the end of each day.

Operation Time - Noise: A noisy construction site could have a detrimental effect on the lessons continuing on the still operational school. This will be hard to avoid, but at the very least we should consider how this can be reduced so that the effect to the school is minimized.

Refurbishment: You suggested that there may be some refurbishment works to the existing building in addition to the new works. I would suggest that given the complexities of dealing with the active construction site and operational school that the restoration works be dealt with separately. I would suggest that the new building be completed first; or at least close to completion and the refurbishment works take place mainly over the course of the summer months. This way if the works do span over the summer months, then there may be the option for the client to take partial possession of the new site, thus limiting the effect of not having access to the sections of the existing building that are under refurbishment. However I would note that carrying out the refurbishment works in addition to having the new construction site and the operational school would make ensuring access to the site is limited very difficult. This may put a strain on the works and the contractor and client and possibly cause problems that are costly for both.

I trust that the above information will be of help to you.

Kind regards,

XXXXXXXXXXXXX

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References:

Study Group K Notes - OJEU / Marketing / Health and Safety / Site Appraisal